

Court No. - 29

Case :- WRIT - C No. - 24080 of 2019

Petitioner :- M/S Parihar Dugdh Avsheetal And Ice Plant

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Ghazala Bano Quadri

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Pankaj Mithal,J.

Hon'ble Saral Srivastava,J.

Heard Ms. Ghazala Bano Quadri, learned counsel for the petitioner and Sri Mahboob Ahmad, learned counsel for the respondent Nos. 2 and 3.

The petitioner has preferred this petition for the quashing of the assessment bill dated 03.05.2019 and the recovery certificate dated 25.07.2018.

It appears from the pleadings that the petitioner disputed correctness of the electricity bill and filed a Writ Petition No. 13316 of 2019 which was disposed off with the direction to the Executive Engineer to consider claim of the petitioner and to rectify the bill, if necessary.

In pursuance to the above order dated 18.04.2019, the Executive Engineer has corrected the bill and has issued the revised bill on 03.05.2019.

The petitioner is still not satisfied and is disputing the said bill.

In case petitioner is aggrieved by the aforesaid bill, the proper remedy available to the petitioner is to prefer a complaint before the Consumer Grievance Redressal Forum and Ombudsman as provided under Clause 7.10 of the U.P. Electricity Supply Code, 2005.

In view of the alternative remedy so available to the petitioner, we do not deem it necessary to exercise our extraordinary jurisdiction in the matter.

The writ petition is, accordingly, **dismissed**.

Order Date :- 6.8.2019

Nirmal Sinha